



Agreement

between

Lunenburg Paraprofessional Union
AFSCME Council 93, Local 503

and

Lunenburg School Committee

July 1, 2025 - June 30, 2028

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AGREEMENT

This agreement is entered into this 1st day of July 2025 between the School Committee of the Town of Lunenburg, Massachusetts, hereinafter referred to as the "Committee", and Lunenburg Paraprofessional Union AFSCME Council 93, Local 503 hereinafter referred to as the "Union".

ARTICLE I. RECOGNITION

1-1 For the purpose of collective bargaining with respect to mandatory subjects of bargaining pursuant to M.G.L. Chapter 150E, the Lunenburg School Committee (the "Committee" or "District") recognizes the AFSCME Council 93 (the "Association" or "Union") as the statutory representative of all members of a bargaining unit consisting of all full time and regular paid time Paraprofessionals employed by the Lunenburg Public Schools (the "District") but excluding all supervisory, managerial, casual, confidential employees, all substitutes, and all other employees of the District. This Agreement shall be interpreted so as to be gender neutral in its application. Wherever the masculine gender is used, it shall also include the feminine, and wherever the feminine is used, it shall include the masculine.

1-2 Union Dues Check Off

The District agrees to deduct Union dues and assessments from the earned wages of each employee who is a member of the Union and who individually authorizes such deductions in writing. The District shall make such deductions monthly, and promptly remit the same to the Treasurer of the Union. The Union Treasurer shall notify the District of the dues rate in force.

The Union shall hold the District, and its officials and agents, harmless of any liability, and indemnify the Town for all costs, fees, and expenses incurred arising out of the application of this provision.

The Union shall indemnify and save the District and/or the Town of Lunenburg harmless against all claims, demands, suits, or other forms of liability, which may arise by reason of any action taken in carrying out the provisions of this article.

1-3 Agency Service Fee

Each employee who elects not to join or maintain membership in the Union may voluntarily pay a service fee to the Union in any amount that is equal to the amount required to become and remain a member in good standing of the exclusive bargaining agent, and its affiliates to or from which membership dues or per capita fees are paid or received.

1-4 PEOPLE Deduction:

The employer agrees to deduct from the wages of any employee who is a member of the Union a PEOPLE deduction as provided for in a written authorization. Such authorization must be executed by the employee and may be revoked by the employee at any time by giving written notice to both the employer and the Union. The employer agrees to remit any deductions made pursuant to this provision promptly to the Union together with an itemized statement showing the name of each employee from whose pay such deductions have been made and the amount deducted during the period covered by the remittance.

**ARTICLE II.
MANAGEMENT RIGHTS**

2-1 As to every matter not specifically mentioned or provided for in this Agreement, the District shall have the powers and duties conferred upon it by law, and may act upon the same without being subject to grievance or arbitration under this agreement.

2-2 By way of example, but not limitation, management retains the following rights: to determine educational policy; to decide the number of employees assigned to a work project or task; to determine whether work will be performed by bargaining unit personnel or outside contractors, regardless of whether such work was formerly performed by such personnel; to determine the policies and practices involving or affecting the hiring, promotion, assignment, evaluation, direction, and transfer of personnel; to determine the equipment to be used in the performance of duty; to establish qualifications for ability to perform work; to lay off employees in the event of lack of work or funds or under conditions where management believes that continuation of such work would be less efficient, less productive, or less economical; to take actions necessary to comply with federal or state law, regulations or mandates; to establish work hours and school day and year schedules; to take whatever actions may be necessary to carry out its responsibilities in situations of emergency; to enforce existing rules, regulations and policies for the governance of the school and to add to or modify each regulation as it deems appropriate; to discharge, suspend, demote, or take other disciplinary action against employees; and, to require the cooperation of all employees in disciplinary investigations, e.g. providing statements or answering questions about job performance or conduct.

2-3 The failure to exercise any management right shall not be deemed a waiver.

**ARTICLE III.
GRIEVANCE PROCEDURE**

3-1 The purpose of this Article is to provide an orderly method for the settlement of certain disputes between the parties limited to those over a claimed violation of a specific provision of this Agreement. Such a dispute shall be defined as a grievance under this Agreement and must be processed in accordance with the following steps, time limits, and conditions herein set forth. If a grievance affects a group or a class of employees from more than one school, the Union may commence a grievance on behalf of such a group or class at Step 2 by submitting the grievance in writing to the Superintendent. Said grievance shall describe the group or class of employees affected.

3-2 Grievances concerning suspensions and other discipline may be brought under the procedure set forth in this Article. However, should an employee elect to pursue any statutory arbitration remedy, including arbitration pursuant to M.G.L. c. 71, §42D, such arbitration shall be the exclusive remedy for the discipline at issue.

3-3 In general, letters issued by the District are not grievable, even if the letter points out a performance issue with which the employee disagrees. In such a case, the employee's sole remedy shall be to submit a rebuttal to the letter which will be kept with the file copy of the letter. Such a rebuttal must be submitted within 15 calendar days of the date that the letter is delivered.

3-4 All grievances filed at Step 1 and 2 of the grievance procedure shall specify:

- a. the particular contract article and section alleged to have been violated;
- b. the facts supporting each alleged violation in reasonable detail;
- c. the date each act or omission violating the Agreement is alleged to have occurred; and,
- d. the remedy sought for each alleged contract violation.

3-5 The Steps of the Grievance procedure shall be as follows:

STEP 1:

The employee shall submit his/her grievance in writing to the building principal within 15 calendar days of the date that the employee or the Union knew or should, with the exercise of reasonable diligence, have known of the occurrence giving rise to the grievance. Within 10 calendar days of the filing of the grievance, the principal or his/her designee shall meet with the aggrieved employee. If the aggrieved employee requests, a Union representative shall be given an opportunity to be present at a time agreeable to the parties. The principal or their designee shall provide a decision in writing within 5 business days of the conclusion of such meeting.

STEP 2:

If the grievance is not settled in Step 1, the Union may appeal it by giving a written notice of such appeal to the Superintendent of Schools within 10 calendar days after the Principal's written answer. The Superintendent shall discuss it with the Union representative at a time agreeable to the parties. The aggrieved employee may also attend and participate in this discussion unless it concerns a group or class of employees. The Superintendent or their designee shall give their written answer to the grievance within 5 school days after the close of the discussion.

STEP 3:

If the grievance is not settled in Step 2, the Union may request a hearing before the School Committee, by submitting a written request, which may include a written summary of the basis of the grievance, to the Superintendent within 10 calendar days of the Step 2 response. The Superintendent will present the request to the School Committee in executive session at the next available meeting, and shall communicate the School Committee's decision to the Union in writing within 5 days of the decision.

If the decision is a denial of the request, then the Superintendent's written notification of the denial to the Union shall serve as the District's Step 3 response for the purposes of this Article. Should the School Committee agree to hear the grievance, the hearing will be held at or before the next available meeting after the meeting at which decision to hear the grievance is made. If the School Committee elects to have a subcommittee hear the grievance, then the hearing shall be scheduled at a time mutually agreeable to the parties. Thereafter, the Committee's written Step 3 response shall be due within 30 calendar days after the hearing.

3-6 The parties agree to follow each of the foregoing steps in the processing of the grievance; and if at any step the District fails to give its written answer within the time limit therein set forth, the grievance shall be deemed to be denied, and the Union may appeal the grievance to the next step at the expiration of such time limit. Failure of the Union at any step to process according to the time limits set forth herein shall mean that the Union has waived the grievance, and the right to proceed further.

3-7 The settlement or remedy of a grievance, including any monetary or back pay remedy, in any case, shall not be made retroactive for any period prior to 15 days before the date the grievance was first presented in writing.

3-8 **Arbitration**

1. If the dispute or grievance is not settled in the foregoing steps and it involves the claimed violation of an arbitrable provision of this Agreement, then the Union may seek arbitration by filing a written demand for arbitration with the American Arbitration Association. The demand shall be filed with the American Arbitration Association within 15 days of the District's answer in Step 2, unless Step 3 review has been requested, in which case, the demand must be filed within 15 days of the District's answer in Step 3.
2. The arbitration proceeding will be conducted under the rules of the American Arbitration Association. The arbitrator shall not have the authority to add to, subtract from, modify, change or alter any of the provisions of this Agreement. The award shall be final and binding on the School District, the Union, and the grievant.
3. Each party shall bear the full cost for its representation in the arbitration and the remaining costs will be shared equally between the parties. If either party desires a verbatim record of the proceedings, it may cause such a record to be made providing it pays for the record and makes copies available to the other party, and to the arbitrator.
4. Any decision which requires the payment of monies which are not available without proper budgetary action, shall not be acted upon until the necessary budgetary action is taken. The Committee acknowledges a responsibility, if there are insufficient funds at the time of an enforceable award, to include such funds in the next budget it adopts.
5. The decision of the arbitrator shall not violate any statutes of the Commonwealth, or regulations pursuant to such statutes.

6. The arbitrator's decision shall be final and binding and may be reviewed in court under G.L. c.150C, or on the grounds that the award: (1) is arbitrary or capricious, or (2) Misinterprets or misapplies any provision of law. The dispute, as stated in the request for arbitration, shall constitute the sole and entire subject matter to be heard by the arbitrator, unless the parties agree in writing to modify the scope of the hearing.
7. The following matters shall not be subject to grievance-arbitration under this Agreement or other recourse:
 - a. Any matter involving the exercise of discretion accorded management under this agreement;
 - b. Disputes over alleged unlawful discrimination;
 - c. Changes in job descriptions or assigned duties;
 - d. Any incident which occurred or failed to occur prior to the effective date of this Agreement.

ARTICLE IV. NEW OR CHANGED POSITIONS

- 4-1 The School District in its discretion, with notification to the Union, may add new job titles and descriptions within the Union, establishing minimum and maximum wage or salary brackets for the same, and reclassifying existing jobs, revising the description and minimum and maximum wage or salary brackets, at a rate not less than the present Salary Schedule.

ARTICLE V. PROFESSIONAL DEVELOPMENT

- 5-1 Unit employees will attend and be paid for a total of 4 professional development days, which currently include one full day before school begins, another full PD day during the year, and 4 half-day PD sessions during the year. The District reserves the right to change the scheduling and format (e.g., half-day versus full day) of these professional development days, in its sole discretion.
- 5-2 Employees required by the District to attend professional development, including in- service days, will be compensated at the appropriate hourly rate unless otherwise stipended.
- 5-3 At times the District may sponsor voluntary educational courses during off hours or on weekends. Employees may attend designated courses free of charge based on a first come first serve basis and job applicability. These courses are not required for employment, and employees will not be compensated for attendance. If the District requires an employee to attend such a course, on or off site, the District will cover the cost of such course, and compensate the employee for attendance.
- 5-4 Full-time unit employees will attend a total of 5 monthly building faculty meetings at the

discretion of the Principal. Those unit members who are part-time will be given the option to attending if their work hours are not contiguous to the time of the faculty meeting.

5-5 Each Bargaining Unit Member will be eligible to receive reimbursement for workshops and trainings up to a maximum of three hundred dollars (\$300.00) per workshop/training, reimbursement for college coursework up to a maximum of six hundred dollars (\$600.00) per course, and reimbursement for graduate coursework up to a maximum of nine hundred dollars (\$900.00) per course, subject to the following conditions:

1. The reimbursement total paid to all bargaining unit members in any fiscal year under this provision shall not exceed ten thousand dollars (\$10,000.00). The fiscal year will be divided into two reimbursement periods with the total split into equal pools of five thousand dollars (\$5,000.00)
 - a. Courses taken from July to December will be eligible for reimbursement in February (first pay of the month), deadline for reimbursement documentation to the Business Office is December 27th.
 - b. Courses taken from January to June will be eligible for reimbursement in September (last pay of the month) deadline for reimbursement documentation to the Business Office is July 15th.
 - c. Employees who choose to pay with a loan/grant from a financial institution/student loans will not be eligible for reimbursement.
2. In the event requests exceed available pool funds, reimbursements will be apportioned to Staff as equally as possible.
3. College Courses must be taken from accredited institutions of higher education. Graduate courses are to be subject content oriented in the teacher's field or be prerequisites for an approved graduate degree program or deemed beneficial to the applicant in his particular Lunenburg assignment. On –line continuing education course credit can account for no more than 60% of the required number of credits for column advancement.
4. All college courses, whether undergraduate or postgraduate, offered by degree granting institutions will be acceptable for reimbursement if the provisions of the grade of "A" and "B" are met.
 - i. All coursework/workshops/trainings must be approved in advance by the principal of the school in which the paraprofessional is assigned and the Superintendent of Schools or his/her designee and must support the paraprofessional's primary responsibility in Lunenburg. Requests to participate in coursework/workshops/trainings must be submitted for approval on the prescribed form.
 - ii. A final grade report or official certificate reflecting the successful completion of the coursework/workshop/training along with payment verification and a copy of the approval form signed by the Superintendent of Schools must be submitted to the Superintendent's office no later than June 30 of the current fiscal year to be eligible for reimbursement along with the last pay of the month in September.

- iii. To qualify for reimbursement, Bargaining Unit Members must continue to be actively employed in the Lunenburg Public Schools during the school year following the completion of said courses/workshops/trainings. Should a bargaining unit member fail to return to the employ of the Lunenburg Public Schools the Superintendent may request that full reimbursement of all funds awarded to that member be made within thirty (30) days of the termination date.
- iv. In the event coursework/workshop/training requests exceed the available pool funds, reimbursements will be apportioned to staff as equally as possible. Any unused coursework/workshop/training funds remaining in the pool at the end of the fiscal year will be forfeited to the school district.

ARTICLE VI. COMPENSATION

- 6-1 Employees shall be paid in accordance with the Salary Schedule set in Appendix A.
- 6-2 Salary increases, both step and those established by this agreement, will be automatic during the term of this agreement.
- 6-3 The Superintendent shall have the discretion to determine the step on which an employee will be hired within the appropriate classification, and may take into account such factors as the Superintendent deems relevant, which may include prior experience, education, training, market forces, and the needs of the school district. Any present employee in the same job classification who can document the same or greater skill and experience as the new employee may appeal their step placement in writing to the Superintendent.
- 6-4 Advancement to the next higher step-rate will take place each succeeding first payroll in July until the maximum is reached. Not more than one step-rate increase shall be received in any (12) twelve month period.
- 6-5 Temporary personnel, hired directly by the school district to perform the duties of the members of this bargaining unit, shall be hired at a rate not to exceed the highest rate stated in this agreement for the position.
- 6-6 If an employee is assigned by the District as a substitute teacher for more than 3 hours per day for any classroom, the employee shall earn the greater of an additional \$50.00 on the employee's wage, in addition to regular wages. The employee will be responsible for submitting documentation of these assignments with their timesheets. If a paraprofessional is assigned as a long-term substitute (an assignment in excess of 10 consecutive days), they will be paid commensurate with the teacher substitute daily wage.
- 6-7 In order for employees to upgrade salary status from "non-licensed" paraprofessional to "licensed" paraprofessional, written notice must be given to the Superintendent of Schools on prescribed form not later than December 15 of the school year prior to the school year in which such change is to be effective. (No changes of salary schedule placement will be made at the beginning of the school year or during a school year without prior notification as set forth above).

- 6-8 Longevity: Employees will be paid longevity based on completed years of continuous paraprofessional (formerly known as aides and tutors) service to the District. Longevity will commence on employees' anniversary dates. Longevity will be added to the base hourly rate and paid regularly in all payroll checks as follows:

Years	Amount
10	\$0.25
15	\$0.30
20	\$0.35
25	\$0.40

Starting in FY23, the following amounts will be added to the base hourly rates and paid regularly in all payroll checks as follows:

Years	Amount
10	\$0.30
15	\$0.35
20	\$0.40
25	\$0.45

Longevity will not be added to pay rates for work done outside of the paraprofessionals regular work day (i.e. after school tutoring/programs or school vacation/summer programs).

- 6-9 Paraprofessionals must work at least 90 school days in a school year to advance a step in the following school year. Days from the sick leave bank may not be applied toward the calculation of the 90 days. This model will start with staff hired in school 2020/2021.
- 6-10 Employees shall have the option to have their pay divided into twenty-one (21) or twenty-six (26) pay cycles. It is understood that an employee who elects to have their pay divided into twenty-six (26) pay periods may be required to compensate the District for wages paid, but not yet worked, upon separation of their employment.
- Paraprofessionals leaving the employ of the school system will receive their accumulated summer pay in a lump sum on or before June 30th.

- b. Paraprofessionals remaining in the school system may receive their accumulated summer pay in a lump sum if they have so requested, in writing, to the Payroll and Benefits person by June 1st of each year. This also will be paid on or before June 30th.

ARTICLE VII. HOURS OF WORK

- 7-1 The District shall determine the weekly hours and schedule of the Paraprofessionals, subject to reasonable notice to the union when schedules or hours are to be changed.
- 7-2 Full-time Employees are those who are regularly scheduled to work at least 29 hours per week.
- 7-3 Employees designated as part-time paraprofessionals work less than 29 hours per week, and their benefits will be prorated in proportion to their actual hours worked.
- 7-4 Employees who work in excess of 40 hours per week shall be paid overtime in accordance with the Fair Labor Standards Act, to the extent it applies. Employees may not work overtime without obtaining approval, in advance, from the building principal, the Superintendent or their designees.
- 7-5 Meal Periods
Each full time employee shall be granted a paid twenty minute duty free lunch period.
- 7-6 Employees required and/or approved by the Principal to extend their work day or work through a break period will be compensated at the appropriate hourly rate unless otherwise stipend.
- 7-7 Full time employees who report to work on the day before Thanksgiving will be paid a full day of salary. Time off days will be employee's appointed daily assignment.

ARTICLE VIII. SICK LEAVE

- 8-1 Accrual: Employees will accrue sick leave for each month of continuous service throughout the work year at a rate totaling 12 days per year. Employees may carry sick days from year to year, but will not accumulate sick leave beyond a total of 180 days. Employees will not accrue sick leave while on any type of leave in excess of thirty (30) calendar days.
- 8-2 Procedure: Where an employee has an illness requiring the use of a sick day, the employee must speak with the building administrator in charge or designee at least two hours prior to the start of the employee's work day in order to allow the District to obtain coverage.
- 8-3 Medical Certification: The District may require an employee to provide medical certification of the need for sick leave under the following conditions:
 - 1. Where the employee has been absent for more than three (3) consecutive days or for

more than five (5) days in any two-week period;

2. After an employee has used sick leave on five (5) or more occasions in a given school year. An "occasion" refers to one or more consecutive workdays of absence resulting from a single illness or injury. (For example, a ten consecutive workday absence for a broken ankle would constitute one occurrence; a subsequent nonconsecutive absence based upon the same injury would be a second occurrence).

8-4 The District may require an employee to be examined at the District's expense by a doctor of the District's choosing.

8-5 Uses for Sick Leave: Sick leave may be used only in cases where the employee is genuinely ill, and where the employee is not being compensated under another leave program, insurance program or in accordance with statute (e.g. workers' compensation). For illness of a member of the employee's immediate family, residing in the same household, which necessitates the paraprofessional's absence from school, up to ten (10) days per school year may be charged to the paraprofessional's personal sick leave. "Immediate Family" for the purposes of this provision shall have the meaning provided in Article XII, Section 12-2 of this Agreement.

8-6 For employees who work variable hours during the week, sick leave will be charged on the basis of the employee's average daily hours. An employee's average daily hours will be determined by dividing the weekly hours stated on the employee's annual appointment form by five days. Example: an employee appointed to work 30.5 hours per week who works four 6-hour days and one 6.5-hour day will be charged 6.10 hours for each full day of sick leave he/she uses.

ARTICLE IX. SICK BANK

9-1 A Sick Leave Bank will be established for use by qualified members whose sick leave accumulation is exhausted through prolonged illness and who require additional leave to recover from an extended illness.

9-2 Each member of the bargaining unit upon the accumulation of twenty (20) sick days becomes eligible for membership in the Sick Leave Bank. They then will contribute two (2) Sick days initially and one (1) sick day each succeeding year until each member has contributed five (5) days.

9-3 In the event that the accumulation of bank days falls below ninety (90) days, members shall contribute additional days as deemed necessary by the Sick Leave Bank Committee.

9-4 Any unused Sick Leave Bank days shall be carried over to successive years.

9-5 The Sick Leave Bank shall be administered by a Sick Leave Bank Committee consisting of two (2) members designated by the School Committee and two (2) members of the Sick Leave Bank designated by the association. The Superintendent will serve as an ex-officio (non-voting) member of the committee.

9-6 Application for benefits shall be made in writing to the Sick Leave Bank Committee prior to the point at which the employee's sick leave is exhausted, and shall be accompanied by a doctor's certificate as to the need for and anticipated extent of extended recovery time from the illness.

9-7 A prolonged illness will be construed to be one which causes the employee to be absent from work twenty (20) consecutive school days. Recurrence of an illness must be diagnosed by the doctor as being related and/or a continuation of the original illness. Under this provision, the twenty (20) prolonged illness days may be waived.

9-8 If a member's sick days are exhausted because of a prolonged illness, any additional days needed for other illnesses will be considered on an individual basis provided a doctor has certified the need for such days.

9-9 The initial grant of sick leave by the Sick Leave Bank Committee to an eligible employee shall not exceed thirty (30) days.

9-10 Additional entitlement may be extended by the Sick Leave Bank Committee upon demonstration of need by the applicant.

9-11 Subject to the foregoing requirements, the Sick Leave Bank Committee will determine the eligibility for the use of the Bank and the amount of leave to be granted. The following general criteria shall be considered by the Committee in administering the Bank and in determining the amount of leave:

- (1) Medical evidence of serious extended illness
- (2) Prior utilization of eligible sick leave
- (3) Longevity

The decision of the Sick Leave Bank Committee with respect to eligibility and entitlement shall be final and binding and not subject to appeal.

9-12 Upon return from extended sick leave during which benefits were received through the Sick Leave Bank, the recipient shall be entitled to commence a new accumulation of individual sick leave in accordance with the provisions of the collective bargaining agreement on the same basis as other paraprofessionals.

9-13 Determinations made by the Sick Leave Bank Committee to extend benefits shall have no impact upon the District's authority to determine: (1) whether an employee may continue on sick leave, or (2) the legitimacy of any sick leave claim.

9-14 Unit A of the Lunenburg Education Association will be allowed to contribute up to sixty (60) days from its Sick Leave bank to assist in the initial establishment of this Bank. Said contribution shall be a one time only event, and will not be repeated.

**ARTICLE X.
FAMILY AND MEDICAL LEAVE**

10-1 Notwithstanding anything in this agreement to the contrary, any unit member may exercise his or her rights to take Family and Medical Leave pursuant to the Family and Medical Leave Act of 1993 ("FMLA"). The FMLA is a federal law that provides for up to 12 weeks of unpaid leave each year for the birth, adoption or placement of a child, or the serious health condition of the employee or an immediate family member. Paid leave may be substituted for unpaid leave under certain circumstances. If an employee takes leave for FMLA reasons, the employee must request leave and comply with the procedures set forth in the District's Family and Medical Leave Policy then in effect. In the event that an employee qualifies for Family and Medical Leave, the District has the right to designate sick or other leave as Family or Medical leave in accordance with the Family and Medical Leave Act and/or Policy.

10-2 Maternity Leave shall be taken in accordance with the Family and Medical Leave Policy and applicable law, except that up to eight weeks of leave may be compensated by the use of accrued sick leave. With the approval of the Superintendent, such leave may be extended, as unpaid leave, for up to one year, provided, that the District may require the employee to choose longer or shorter leave duration that results in the employee returning at the beginning of a school term or year.

10-3 Employees will be required to use accrued paid leave, such as sick or vacation leave, or compensatory time to cover some or all of the FMLA leave. When paid leave is used, the employee must follow the Town's paid leave policies and procedures with respect to use of such leave.

**ARTICLE XI.
BEREAVEMENT LEAVE**

11-1 For death in the immediate family of the employee, an absence of up to five (5) consecutive calendar days beginning with the date of death shall be granted without loss of pay or other leave benefits. Immediate family shall mean parent, grandparent, grandchild, sibling, parent-in-law, or any other person who resides within the same house.

11-2 For the death of a spouse or child of the employee, an absence of up to ten (10) consecutive calendar days beginning with the date of the death shall be granted without loss of pay or other leave benefit.

11-3 Additional time, if needed under unusual circumstances, may be granted by the District.

11-4 In the event of a death of other close relative, one (1) day will be granted.

**ARTICLE XII.
PERSONAL LEAVE**

12-1 Each employee shall be allowed a maximum of three (3) personal days off per school year with pay to handle personal business. Personal leave will be prorated for new employees hired after the school year begins based on the new employee's start date and a ten-month school year.

12-2 Personal business means important appointments or other important matters that cannot be scheduled to occur outside the employee's work day or work year, including required court appearances, funerals of close friends or relatives not covered under Article XII, bona fide religious holidays, closing on a house, and other similar matters.

12-3 Requests for personal days must be made to the Superintendent, or designee, through the employee's building administrator in charge at least three (3) school days prior to the requested day off. Requests must be made in writing with the district approved form. In case of emergency, an employee may request a personal day with such notice as is practicable under the circumstances, and in such cases the grant or denial of the personal day shall be at the discretion of the District.

12-4 An employee who takes a personal day off without properly requesting and obtaining approval for that day will not be paid for that day, and may be subject to further disciplinary action.

12-5 Personal days cannot be carried over from year to year, however, unused personal days may be converted into sick days the following school year.

12-6 Personal leave will not be granted the first five days of the school year, during the last five days of the school year, or immediately preceding or following school vacation periods or holidays unless it is to be used in lieu of sick days in cases of family or personal illness, or bereavement of an individual not covered in Article XII.

12-7 For employees who work variable hours during the week, personal leave will be charged on the basis of the employee's average daily hours. An employee's average daily hours will be determined by dividing the weekly hours stated on the employee's annual appointment form by five days. Example: an employee appointed to work 30.5 hours per week who works four 6-hour days and one 6.5-hour day will be charged 6.10 hours for each full day of personal leave he/she uses.

ARTICLE XIII. HEALTH AND WELFARE

Group Insurance will be provided by the Town of Lunenburg in accordance with the provisions of G. L. c.32B. Benefits shall be based upon the programs and premium contributions offered by the Town to other District employees. The parties acknowledge that insurance carriers frequently modify benefits and co-payments applicable to certain insurance plans, and may discontinue, replace or rename certain plans, and that neither the District nor the Town shall have no duty to bargain with the Union concerning such modifications or their impacts that may occur during the term of this agreement. Should insurance benefits, co-payments and premium contribution rates change for other school district employees during the life of this agreement, those changes will apply to employees in this bargaining unit on the earliest effective dates applicable to other school employees.

ARTICLE XIV. JURY DUTY

Employees will be granted leave to attend jury duty in accordance with applicable law.

**ARTICLE XV.
DELAYED OPENINGS**

When weather or other conditions on a given day require a delayed opening of school, all paraprofessionals will be compensated in the dollar amount that would apply to them if such a delay had not occurred. Similarly, if school is dismissed early because of an unexpected emergency due to weather or other conditions or events, all paraprofessionals will not be subject to any loss of wages if they report to work.

**ARTICLE XVI.
USE OF SCHOOL BUILDINGS**

Upon application to the Building Principal, the Union may use a room at a school building for purposes consistent with the District's policies concerning school building use, at reasonable times and without cost, if the room is available and if the building is open.

**ARTICLE XVII.
ENTIRE AGREEMENT**

17-1 This Agreement, upon ratification, constitutes the complete and entire agreement between the parties and concludes collective bargaining for its term. No amendment to this Agreement shall be effective unless in writing, ratified, and executed by the parties.

17-2 The parties acknowledge that during the negotiations which resulted in this Agreement, the parties had the unlimited right and opportunity to make demands and proposals with respect to any subject or matter not removed by law from the areas of collective bargaining, and that the understandings and agreements arrived at by the parties after the exercise of that right and opportunity are set forth in this Agreement.

17-3 Therefore, for the duration of this Agreement, the parties shall not be obligated to reopen negotiations regarding matters that are covered or could have been covered under this agreement.

**ARTICLE XVIII.
STABILITY OF AGREEMENT**

18-1 No amendment of this Agreement shall bind the parties hereto unless executed in writing, signed by both parties.

18-2 The failure of the School District or the Union to insist, in any one or more instances, upon performance of any terms or conditions of this Agreement, shall not be considered as a waiver or relinquishment of the rights of the Committee or of the Union to future performance of any such term of condition, and the obligations of the Union or of the Committee to such future performance shall continue in full force and effect.

18-3 Should any provision of this Agreement be rendered or declared invalid by reason of existing or subsequently enacted legislation, or by any decree of a court of competent jurisdiction, such invalidation of such portion of this Agreement shall not invalidate the remaining portions hereof.

**ARTICLE XIX.
PROBATIONARY PERIOD**

The first three (3) months of a newly hired employee shall be a probationary period, and during such probationary period an employee shall have no recourse under this Agreement should their employment be terminated.

**ARTICLE XX.
REDUCTION IN FORCE AND NON-RENEWAL**

20-1 If it becomes necessary to reduce the number of employees in the bargaining unit, the employees retained shall be those best qualified for the positions that remain, with seniority within the bargaining unit to be used as a tiebreaker between equally qualified persons. Seniority shall be defined as the length of continuous service with the Employer from the employee's last date of hire. The District shall determine qualifications, and may consider previous experience, employee evaluations and other relevant factors.

20-2 In the event any bargaining unit member's annual appointment is not renewed for the next fiscal year, the School District shall give written notice to the affected employee on or before June 1. Non-renewal shall be without recourse to the grievance and arbitration procedure.

**ARTICLE XXI.
HOLIDAYS**

21-1 full-time employee will be paid for the following holidays:

- Labor Day
- Veteran's Day
- Day after Thanksgiving Day
- Thanksgiving Day
- Christmas Day
- New Year's Day
- Memorial Day
- Juneteenth
- Indigenous Day
- MLK Day
- President's Day
- Patriots' Day (in FY28)

21-2 A day of holiday pay for a full-time employee shall be computed on the basis of the employee's regular straight-time hourly rate multiplied by the number of hours per day the employee is regularly scheduled to work.

For employees who work variable hours during the week, a day of holiday pay shall be computed on the basis of the employee's regular straight-time hourly rate multiplied by

his/her average daily hours. An employee's average daily hours will be determined by dividing the weekly hours stated on the employee's annual appointment form by five days. Example: an employee appointed to work 30.5 hours per week who works four 6- hour days and one 6.5-hour day will be paid 6.10 hours for the holiday.

- 21-3 The Superintendent may, in his/her sole discretion, declare additional holidays for which employees will be paid. No aspect of the Superintendent's declaration of or failure to declare additional holidays pursuant to this provision shall be subject to the grievance and arbitration procedures of this Agreement.
- 21-4 The District agrees to continue the practice of paying employees full day's pay on the Wednesday before Thanksgiving.

ARTICLE XXII DISCIPLINE

- 22-1 The Employer shall not suspend, demote, or discharge any non-probationary employee without just cause.
- 22-2 If the Employer has reason to reprimand an Employee, it shall be done privately. This does not preclude the Employer from providing feedback or direction to an employee or employees in the moment/publicly.
- 22-3 In general, letters issued by the District are not grievable, even if the letter points out a performance issue with which the employee disagrees. In such case, the employee's sole remedy shall be to submit a rebuttal letter which will be kept with the file copy of the letter. Such a rebuttal must be submitted within 15 calendar days of the date of that the letter is delivered.
- 22-4 In case of discharge, of a non-probationary employee, the employee affected may request and shall receive from the Employer in writing the reason for said dismissal.
- 22-5 When an employee is discharged by the Employer, the Union shall be promptly notified.
- 22-6 All copies of warning notices shall be forwarded to the Union office upon request.

ARTICLE XXIII JOB POSTINGS

- 23-1 Any new position or vacancy shall be announced via internal email and posted on the District's internet site for not less than seven (7) consecutive working days. Employees shall apply for the posted vacancy as instructed in the posting.
- 23-2 The posting shall contain the minimum qualifications and job requirements for the posted position.
- 23-3 The District will fill the position based on the level of candidate fit with the qualifications, skills or experience required for the role.
- 23-4 Transfers- When the District deems the transfer of personnel is necessary, the employee may request a meeting, with union representation if they so choose, to discuss the merits of such transfer and any alternative to such transfers.
- 23-5 If the District and the Union are unable to reach agreement on an involuntary transfer plan, the District may invoke its management rights to involuntarily transfer employees to ensure the effective administration of the school academic program.
- 23-6 Transfers may need to be done on an emergency basis and/or due to critical need with limited notice.
- 23-7 Wherever possible, transfers to different buildings, employees should be afforded a two week notice.

ARTICLE XXIV JOINT LABOR MANAGEMENT COMMITTEE

- 24-1 With the aim of promoting better understanding between the parties, the Employer and the Union agree that informal meetings between administration and the Union can be held at mutually agreeable times and places so as to apprise the other problems, concerns, and suggestions related to the operations and the workforce.
- 24-2 Such meetings shall not be construed as opening the Agreement for negotiations, nor shall any subject matter at the meetings constitute a step in the grievance procedure.

ARTICLE XXV.

DURATION

This agreement shall take effect upon ratification by all parties, and shall expire on June 30, 2028.

Negotiations for a successor agreement may commence upon request by either party after September 1 of the final fiscal year of the agreement.

ARTICLE XXVI. UNION BUSINESS

26-1. The Union shall have the right to designate up to three (3) stewards. The Union will notify the Employer when an employee has been appointed a union stewards.

26-2. The union steward shall be empowered to discuss the adjustment of grievances with the Employer. Union stewards shall be recognized by the Employer as representatives of the employees for the purposes of enforcing this Agreement and shall act as representatives of the Union on the job.

26-3. The Employer understands and agrees that the Union representative shall have the rights provided under M.G.L. c. 150E, s. 5A.

IN WITNESS WHEREOF, the parties to this CONTRACT have caused these present to be executed by their agents hereunto duly authorized, and their seal to be affixed hereto, as of the date first above written:

**LUNENBURG:
SCHOOL COMMITTEE**

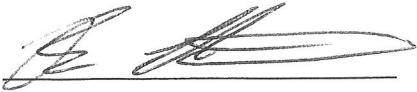
**LUNENBURG PARAPROFESSIONAL
UNION, AFSCME COUNCIL 93
LOCAL 503**

Chairperson

Vice-Chairperson

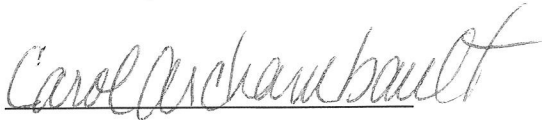
IN WITNESS WHEREOF, the parties to this CONTRACT have caused these present to be executed by their agents hereunto duly authorized, and their seal to be affixed hereto, as of the date first above written:

**LUNENBURG:
SCHOOL COMMITTEE**

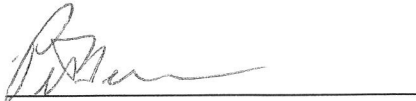


Chairperson

Vice-Chairperson



Secretary



Member



Member

Date

**LUNENBURG PARAPROFESSIONAL
UNION, AFSCME COUNCIL 93
LOCAL 503**

Date